

September 17, 2026

To: Complaint Resolution, Frisco Independent School District

Copy: Chris Burtch, Managing Director of Athletics; Esther Kolni, General Counsel; Dr. Todd Fouche, Superintendent

Re: Request for the record and authority underlying the July 7, 2026 suspension and criminal trespass notice — References Z005911-061526 and Z006179-091626

On July 7, 2026, I received a Summary of Investigation issued by Ms. Melissa Howard, Mr. Matthew Franks, Mr. Daiki Sato, and Mr. Justin Bilgri. It suspended me from every Iron Horse Aquatics event through December 31, 2026 and stated that the District would pursue criminal trespass enforcement if I attended. Iron Horse Aquatics operates at the District's natatorium, and the letter bars me from a District facility.

I ask the District to state in writing whether it considers that action a refusal of entry to, or ejection from, District property under Texas Education Code Section 37.105.

If the District considers it an action under Section 37.105, please provide the following.

1. The name and title of the school administrator, school resource officer, or school district peace officer who made the determination required by Section 37.105(a), and the date of that determination.
2. The record of the verbal warning required by Section 37.105(a)(2)(A) and maintained under Section 37.105(c), including the name of the person who issued it and the date it was issued.
3. The written information explaining the appeal process, which Section 37.105(d) requires the District to provide at the time a person is refused entry or ejected. I did not receive any such information on or after July 7, 2026.
4. Confirmation of the date on which the term of the refusal or ejection begins and ends, consistent with the two-year limit in Section 37.105(f).
5. The location on the District's website of the notice required by Section 37.105(g) describing these provisions and the appeal process established under Section 37.105(h).

If the District does not consider the July 7, 2026 action to be a refusal of entry or ejection under Section 37.105, please identify the specific authority under which four Iron Horse Aquatics coaching staff members barred a parent from a District facility and invoked criminal trespass enforcement, and please identify the appeal process the District contends applies to that action.

I ask that all records relating to the July 7, 2026 determination be preserved, including any verbal warning records, communications among District staff concerning the decision, and any documents relied upon in reaching it.

I raise this now because my Level III appeal is before the Board of Trustees on October 19, 2026, and because Section 37.105(h) provides for appeal of a refusal of entry or ejection to the Board. I ask that the District's response be provided in time for inclusion in the Level III record.

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